

25SMCV03803 25SMCV03803

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-24

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Case Number: 25SMCV03803 Hearing Date: September 24, 2026 Dept: P

Tentative

Ruling

Anthony

Jones v. Velocity Commercial Capital, LLC, et al. Case No. 25SMCV03803

Vivimei

LLC's Demurrer

Hearing

Date: September 24, 2026

Background

Anthony

Jones, in pro per, sues Velocity Commercial Capital, LLC; U.S. Bank Trust company, N.A., as trustee for the Velocity Commercial Capital Loan Trust 2022-2; McCalla Raymer Leibert Pierce, LLC; Nabeel Zuberi; Vivimei, LLC; and Gaymond Lee for (1) quiet title, (2) cancellation of instruments, (3) declaratory relief, and (4) unfair business practices.

Plaintiff challenges

the validity of Defendant Vivimei's title to property located at 2704 Strongs Drive, Venice, CA 90210. (Second Amended Complaint, ¶¶ 12-17.) Plaintiff alleges that the property should have been sold to him because he made a down payment and subsequently offered a \$1.6 million loan he secured in September 2024 to Velocity, which allegedly ignored Plaintiff's offer and sold the property to Defendant Vivimei at foreclosure. (Id. ¶ 17.)

On

February 26, 2026, the Court sustained Vivimei's demurrer to Plaintiff's initial complaint with leave to amend. Plaintiff subsequently filed a First Amended Complaint. The parties then stipulated to leave to amend, and on May 26, 2026, Plaintiff filed the Second Amended Complaint.

On June

25, 2026, Vivimei filed this demurrer.

On July

21, 2026, Plaintiff retained counsel and filed a substitution of attorney.

On

September 22, 2026, Plaintiff filed the Declaration of Bahram Madaen, seeking leave to amend to file a third amended complaint to clarify the grounds for Plaintiff's claim of ownership over the subject property.

Given that

Vivimei's demurrer is in large part based on the fact that Plaintiff's claim to title in the Second Amended Complaint is unclear and because Plaintiff only recently retained counsel, the Court GRANTS Plaintiff's counsel's request for leave to amend.

Conclusion

Plaintiff's

request for leave to amend is GRANTED.

Vivimei's

demurrer is MOOT.

Plaintiff

is ordered to file a Third Amended Complaint within ten (10) days.